

23PSCV01294 23PSCV01294

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-08-10

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Case Number: 23PSCV01294 Hearing Date: August 10, 2026 Dept: G

Defendants

Rogelio Amador and JR Express, LLC's Motion to Compel Plaintiff Emad Qubrosi's
Responses to Form Interrogatories, Set One, and Request for Monetary Sanctions

Respondent:

NO OPPOSITION

Defendants

Rogelio Amador and JR Express, LLC's Motion to Compel Plaintiff Emad Qubrosi's
Responses to Special Interrogatories, Set One, and Request for Monetary
Sanctions

Respondent:

NO OPPOSITION

Defendants

Rogelio Amador and JR Express, LLC's Motion to Compel Plaintiff Emad Qubrosi's
Responses to Form Interrogatories, Set Two, and Request for Monetary Sanctions

Respondent:

NO OPPOSITION

Defendants

Rogelio Amador and JR Express, LLC's Motion to Compel Plaintiff Emad Qubrosi's
Responses to Special Interrogatories, Set Two, and Request for Monetary
Sanctions

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Defendants

Rogelio Amador and JR Express, LLC's Motion to Compel Plaintiff Emad Qubrosi's Responses to Form Interrogatories, Set One, and Request for Monetary Sanctions is GRANTED.

Defendants

Rogelio Amador and JR Express, LLC's Motion to Compel Plaintiff Emad Qubrosi's Responses to Special Interrogatories, Set One, and Request for Monetary Sanctions is GRANTED.

Defendants

Rogelio Amador and JR Express, LLC's Motion to Compel Plaintiff Emad Qubrosi's Responses to Form Interrogatories, Set Two, and Request for Monetary Sanctions is GRANTED.

Defendants

Rogelio Amador and JR Express, LLC's Motion to Compel Plaintiff Emad Qubrosi's Responses to Special Interrogatories, Set Two, and Request for Monetary Sanctions is GRANTED.

BACKGROUND

This

is a personal injury action arising from an automobile collision. In April 2021, defendants Rogelio Amador (Amador) and Hany S. Abdelshahid (Abdelshahid) allegedly rear-ended the vehicle of plaintiff Emad Qubrosi (Qubrosi). At the time of the collision, Amador was allegedly employed by defendant JR Express, LLC (JR Express), and Abdelshahid was allegedly employed by defendant Accurate Delivery Systems, Inc. (ADS).

On

April 28, 2023, Qubrosi filed the Complaint, alleging a sole cause of action for negligence.

On

November 20, 2025, the court dismissed Abdelshahid and ADS without prejudice.

On

May 29, 2026, the court held an informal discovery conference and Qubrosi agreed to provide discovery responses. On

June 3, 2026, Amador and JR Express (collectively, Defendants) filed these motions to compel responses, which are unopposed.

The

motions are set for hearing between on August 10, 2026.

ANALYSIS

Defendants

move to compel responses to interrogatories and for each motion, Defendants request monetary sanctions. For the following reasons, the motions are GRANTED.

Legal

Standard

A

propounding party may file a motion to compel responses to interrogatories or to requests for production, or a motion to deem admitted matters specified in a request for admissions, if a response has not been received. (Code Civ. Proc., §§ 2030.290, subd. (b); 2031.300, subd. (b); 2033.280, subd. (b).)

A response must be provided within 30 days of service, but if responses are untimely, the responding party waives objections. (Code Civ. Proc., §§ 2030.260, subd. (a); 2030.290, subd. (a); 2031.260, subd. (a); 2031.300, subd. (a); 2033.280, subd. (a).)

Monetary

sanctions are mandatory as against any party who fails “to respond or to submit to an authorized method of discovery,” “who unsuccessfully . . . opposes a motion to compel [discovery],” or whose failure to serve a timely response necessitated a motion to deem request for admissions as admitted, unless the court finds “the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2023.010, subd. (d); 2023.030, subd. (a); 2025.450, subd. (g)(1); 2030.290, subd. (c);

2031.300, subd. (c); 2033.280, subd. (c).)

Justification is “substantial” if it is “clearly reasonable because it is well-grounded in both law and fact.”

(Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1434.) The court may award sanctions in

favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.

(Cal. Rules of Court, rule 3.1348, subd. (a).) While the imposition of sanctions is mandatory, the court “has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award.” (Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc. (2020) 56 Cal.App.5th 771, 791.)

Discussion

Defendants

served (1) Form Interrogatories, Set One and (2) Special Interrogatories, Set One on October 25, 2024 and served (3) Form Interrogatories, Set Two and (4) Special Interrogatories, Set Two on November 18, 2025.

(See Mot. Re: FROGS, Set One, Tran Decl., ¶ 3; see also Mot.

Re: FROGS, Set Two, Tran Decl., ¶ 3.) Defendants’

counsel followed-up with Qubrosi’s counsel between December 5, 2024 and April

3, 2026, but Qubrosi never served responses to discovery as promised. (See, e.g., Mot. Re: FROGS, Set One, Tran Decl., ¶¶

4–9.)

At

the informal discovery conference, Qubrosi, through counsel, agreed to serve responses by the end of the day on May 29, 2026. (See 5/29/2026 Min. Order, p. 1.) To date, Qubrosi has failed to respond to the

discovery requests. (See, e.g., Mot. Re: FROGS, Set One, Trad Decl., ¶

10.) Therefore, the motions to

compel responses to (1) Form Interrogatories, Set One; (2) Special

Interrogatories, Set One; (3) Form Interrogatories, Set Two; and (4) Special

Interrogatories, Set Two are GRANTED.

Qubrosi

is ordered to serve verified responses without objections within ten (10) days, or not later than August 20, 2026.

Since

Qubrosi failed to serve responses to Defendants' discovery requests, the Code of Civil Procedure requires that the court impose monetary sanctions. (See Code Civ. Proc., §§ 2023.010, subd. (d); 2023.030, subd. (a); 2025.450, subd. (g)(1); 2030.290, subd. (c); 2031.300, subd. (c); 2033.280, subd. (c).)

Defendants' counsel charges a rate of \$195 per hour. (See Mot. Re: FROGS, Set One, Tran Decl.,

¶ 11.) Based on counsel's

representations, the court estimates that counsel spent four hours in connection with preparing these discovery motions and one hour to appear at the hearing on these motions, which totals five hours; counsel did not spend time reviewing oppositions or drafting replies.

(See Mot. Re: FROGS, Set One, Tran Decl., ¶ 11.) The rate of \$195 multiplied by three hours equals \$975.00; the \$89.95 filing fee multiplied by four equals \$359.80.00. (See Mot. Re: FROGS, Set One, Tran Decl.,

¶ 11.) Together, these equal a sanction

of \$1,334.80. Therefore, requests for

sanctions are GRANTED in the total amount of \$1,334.80.

CONCLUSION

For

these reasons, the discovery motions and corresponding requests for monetary sanctions are GRANTED.

Plaintiff

Emad Qubrosi is ordered to serve verified responses without objections within ten (10) days, or not later than August 20, 2026.

Further,

Plaintiff Emad Qubrosi is ORDERED to PAY sanctions in the total amount of \$1,334.80 within thirty (30) days of service of this order.